

## Riverside Booksellers Ass'n v. City of Fairmont - Dispositive Motion or Response

Dispositive Motion or Response in Riverside Booksellers Ass'n v. City of Fairmont.

Procedural posture: District court denied a preliminary injunction against a city licensing ordinance, and appellant seeks emergency relief pending appeal. Record

material: The district court denied a preliminary injunction after finding no likely

First Amendment violation. Issue: Preliminary injunction factors. Standard of review:

abuse of discretion with legal conclusions reviewed de novo. Record excerpt: City

licensing ordinance. The ordinance requires permits for sidewalk book displays within

500 feet of city hall during public events. Nature of suit: Civil Rights - First

Amendment. Lower tribunal: U.S. District Court for the Northern District of West

Virginia.